

Court No. - 32

Case :- WRIT - C No. - 41608 of 2018

Petitioner :- Gayatri Devi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arun Kumar Sharma

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

This writ petition has been filed, inter alia, for the following reliefs:

"A. Issue a writ order of direction in the nature of certiorari quashing of the impugned electricity bill dated 9.10.2018 of Rs. 40,407/- (Forty thousand four hundred seven) (Annexure No. 10 to this writ petition).

B. Issue a writ order of direction in the nature of mandamus directing to the respondent no. 3 to correct the electricity bill of the petitioner according to law and also given permission to deposit the bill of the petitioner (after correction to bill) in part payment.

C. Issue a writ order of direction in the nature of mandamus directing to the respondent no. 3 to correct the electricity bill of the petitioner according to law."

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the Respondent No. 3, Executive Engineer/appropriate authority for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority in accordance with law within 15 days from the date of receipt of a certified copy

of this order by a speaking order after giving opportunity of hearing to the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 17.12.2018

vinay